

no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.

24CV-06305 Grace Tovar vs Jacob Martinez

Petition for Minor's Compromise

The petition for minor's compromise for minor Grace Tovar is DENIED, pending the filing of a prefilled order appointing guardian ad litem on form CIV-011.

The hearing is continued to July 28, 2026, at 8:15 a.m. in Courtroom 8 for status of the appointment of a guardian ad litem. Once the form CIV-011 has been filed and approved, the court will grant the petition for minor's compromise and sign the orders lodged on June 22, 2026.

25CV-01616 Zachary Katcher vs Gobi Land Management LLC

Motion to Be Relieved as Counsel

The unopposed motion by attorney Joe R. Abramson and the law firm of Law Offices of Joe R. Abramson, to be relieved as counsel for defendant Gobi Land Management, LLC, an Illinois limited liability company, is GRANTED.

The court will sign the order lodged with the court on May 11, 2026.

The order will be effective upon the filing of the proof of service of the signed order upon the client.

25CV-06400 Kalid Sanchez vs Los Banos Enterprise, et al.

Motion to Compel Preparation and Transmission of the Record on Appeal

The motion to compel preparation and transmission of the record on appeal is DENIED. The motion is premature. The superior court has transmitted a copy of Plaintiff's designation of the record to the appellate court and is within the allowable time period for preparation of the record. There is no evidence of any delay, intentional or otherwise, by the clerk's office.

Under California Rules of Court, rule 8.122, the clerk's office has 30 days to prepare the record. Yet, Plaintiff filed the instant motion a mere two days after the clerk's office prepared notice to the parties of the estimated cost to prepare the transcript, with a payment deadline of June 8, 2026, and noting Plaintiff's filed fee waiver request.

Motion to Correct Minute Order Dated 5/14/2026

Plaintiff's motion to correct the minute order dated May 14, 2026, is DENIED.

The Court has reviewed the May 14, 2026, minute order and the court record.

Plaintiff did not request oral argument in accordance with Local Rule 3.1(F). Local Rule 3.1(F) requires any party intending to appear to present oral argument following the posting of a tentative ruling to notify all parties by telephone or in person, and to notify the court by telephone, no later than 4:00 p.m. the day before the hearing. Regardless of whether Defendant was notified, the record shows that the court was not notified as required. Accordingly, Plaintiff waived oral argument.

The Court finds the typographical error on Defendant's form MC-010, wherein Defendant's counsel inadvertently stated he was attorney for "Plaintiffs," to be harmless error. In addition, although initially listed in the Register of Actions as being filed by Plaintiff, the error was found and corrected to indicate that the form was filed by Defendant. The errors were not material to any issue in this case.

Finally, there is evidentiary basis for the award of \$6,278 in attorney's fees. Here, Plaintiff conflates Defendant's motion for attorney's fees and their memorandum of costs on form MC-010. These are separate and distinct forms of compensation. In reviewing the motion for attorney's fees, the Court did not consider form MC-010.

As for the mathematical support, Defendant provided redacted invoices totaling \$5,153 and not \$3,342.50 as asserted by Plaintiff. Furthermore, in addition to the \$5,153, Defendant had initially requested an additional \$1,875 for preparation of the motion and in anticipation of preparing a reply and attendance at the hearing. The Court found this request excessive and reduced the amount by two (2) hours, which resulted in a reduced award of \$1,125. The result was a total award of attorney's fees in the amount of \$6,278.

25CV-07066

Yesenia Martinez, et al. vs State Farm General Insurance Company

Motion to Compel Discovery Responses, Deem Requests for Admission Admitted and Request for Monetary Sanctions

Defendant's motion to compel responses to Form Interrogatories, Set One, is GRANTED.

Plaintiffs have failed to provide timely responses to Form Interrogatories, Set One. Objections are waived. Plaintiffs shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Defendant's motion to compel responses to Special Interrogatories, Set One, is GRANTED.

Plaintiffs have failed to provide timely responses to Special Interrogatories, Set One. Objections are waived. Plaintiffs shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Defendant's motion to compel responses to Request for Production of Documents, Set One, is GRANTED.